

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUCL048563: TRANSPORTATION ALLIANCE BANK, INC vs AP RELIABLE
TRUCKING, A CALIFORNIA CORPORATION, et al.**

06/23/2026 in Department 21

Motion to Strike Answer of Defendant

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Strike Answer of Defendant (*Opposed*)

Tentative Ruling: Plaintiff’s motion to strike Defendant’s Answer is DENIED without prejudice to refile, providing the Court with valid evidence that Defendant AP Reliable Trucking is, in fact, a corporation (and, say, not a sole proprietorship).

Plaintiff’s request for sanctions is DENIED.

Discussion:

To begin, under California law, a party is generally required to meet and confer before filing a statutory motion to strike. Specifically, before filing a motion to strike, the moving party must meet and confer *in person, by telephone, or by video conference* with the party who filed the pleading subject to the motion to strike. The purpose of this meeting is to determine if an agreement can be reached to resolve the objections raised in the motion. (CCP § 435.5.)

A court's determination that a meet and confer process was insufficient does not constitute grounds to grant or deny the motion to strike. (CCP § 435.5.)

Counsel for Plaintiff states in declarations that he sent three (3) meet and confer letter to Adrian Perez advising him that the Defendant’s Answer does not adhere to CCP § 116.540(b) and that if Defendant failed to submit an amended, completed Answer Plaintiff would file a motion to strike their answer. Although Plaintiff’s counsel did not attempt to meet and confer *in person, by telephone, or by video conference*, the court will not deny the motion on this ground.

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Turning to the merits, Defendant Adrian Perez, who presumably owns AP Reliable Trucking, filed an answer on AP Reliable Trucking's behalf. Plaintiff claims that Defendant AP Reliable Trucking is a California corporation and therefore must be represented by counsel in these proceedings. (CCP § 116.540(b)). Plaintiff has not submitted evidence that AP Reliable Trucking is a corporation and not, say, a sole proprietorship of Defendant Perez. Adrian Perez has neither denied nor affirmed the corporate status of his business in the answer or as reflected in the Court minutes. Absent proof of Defendant AP Reliable Trucking's status as a corporation, this motion is DENIED without prejudice to refile with proof of Defendant's corporate status.

Plaintiff's request for sanctions is DENIED.